

**CHAPTER 2.**

An Act to amend the provisions of the Unemployment Insurance Acts, 1920 to 1922, relating to special periods, the period of benefit and the conditions for the receipt of benefit, to provide for continuing the existing rates of benefit and for making consequential alterations in the rates of contributions, and to enable benefit to be administered in the case of persons under the age of eighteen years through local education authorities, and otherwise to amend those Acts.

[29th March 1923.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. The fourth special period defined in section three of the Unemployment Insurance Act, 1922 (in this Act referred to as "the Act of 1922"), shall be extended so as to terminate on the seventeenth day of October, nineteen hundred and twenty-three, instead of on the first day of July, nineteen hundred and twenty-three, and the provisions of the said Act relating to benefit within the fourth special period shall have effect subject to the following modifications :—

Prolongation  
of fourth  
special  
period.  
12 Geo. 5.  
c. 7.

- (1) The periods for which a person may be authorised to receive benefit shall be periods not exceeding in the aggregate forty-four weeks :
- (2) When a person has received benefit in the fourth special period for periods amounting in the aggregate to twenty-two weeks, he shall cease to be qualified for the receipt of benefit in the fourth special period until the expiration of two weeks from the date (whether falling before or after the commencement of this Act) on which the last period in respect of which benefit was payable ended :

- (3) Notwithstanding anything in any Act, no person shall, except by virtue of an authorisation given by the Minister under section four of the Act of 1922 as amended by this Act, receive benefit in the fourth special period for periods amounting in the aggregate to more than twenty-six weeks, and no person shall, whether by virtue of such an authorisation as aforesaid or otherwise, receive benefit in the fourth special period for periods amounting in the aggregate to more than forty-four weeks.
- (4) Where a disabled person, as defined by subsection (1) of section nine of the Unemployment Insurance Act, 1921, is in the opinion of the Minister, by reason of his disability unable to undertake whole-time employment, the Minister may, notwithstanding the provisions of paragraph (b) of subsection (3) of section four of the Act of 1922, authorise that person to receive benefit.

11 Geo. 5.  
c. 1.

Conditions  
for receipt  
of benefit in  
year follow-  
ing fourth  
special  
period.

2. Subject to the provisions of this section, the Minister shall have the same power to authorise the receipt of benefit during the first benefit year as hereinafter in this Act defined, as he has to authorise the receipt of benefit during the fourth special period, and references in the Act of 1922 to the authorisation and receipt of benefit under that Act shall apply accordingly :

Provided that—

- (1) The periods for which a person may be authorised by the Minister under section four of the Act of 1922 as applied by this section to receive benefit in the first benefit year shall be periods not exceeding in the aggregate twenty-six weeks, and, notwithstanding anything in any Act, no person shall, whether as being so authorised or otherwise, be entitled to receive benefit in the first benefit year for periods amounting in the aggregate to more than twenty-six weeks :
- (2) Where benefit so authorised as aforesaid has been received by any person in the first benefit year for periods amounting in the aggregate to twelve weeks, that person shall cease to be

qualified for the receipt of benefit in that benefit year until the expiration of three weeks from the date on which the last period in respect of which benefit was payable ended.

3.—(1) Paragraph 2 of the Second Schedule to the Unemployment Insurance Act, 1920 (in this Act referred to as “the principal Act”), which as amended by section four of the Unemployment Insurance Act, 1921, provides that no person shall within any insurance year receive benefit for a period of more than twenty-six weeks or such other period as may be prescribed, shall have effect as though a reference to a benefit year were substituted therein for the reference to an insurance year.

Definition of  
“year” for  
the purpose  
of receipt of  
benefit.

10 & 11

Geo. 5. c. 30.

(2) Subject as hereinafter provided, the first benefit year shall be the year beginning on the eighteenth day of October, nineteen hundred and twenty-three, and ending on the fifteenth day of October, nineteen hundred and twenty-four, and every subsequent benefit year shall be a period beginning on the day following the expiration of the previous benefit year and ending on the Wednesday nearest to the sixteenth day of October in the next following calendar year:

Provided that the Minister may from time to time, if he thinks fit, by regulation direct that the benefit year shall begin or end on some date other than the date for which provision is made by this subsection, and so that any benefit year may be a greater or less period than twelve months, and for the purpose of meeting any change thereby effected in the benefit year, the Minister may with the consent of the Treasury make such corresponding variation as regards the number of weeks of benefit which may be received within any benefit year as appears to him to be proper.

4.—(1) Section one of the Act of 1922, which provides for an increase in the rate of benefit in respect of dependants, and which as originally enacted is to continue in operation so long only as the rates of contribution fixed by that Act remain in force, shall continue in force after the end of the deficiency period.

Rates of  
benefit and  
rates of  
contribution.

(2) Notwithstanding any enactment to the contrary, the rates of contribution in force at the commencement of this Act shall remain in force after the end of the deficiency period until such date as the Minister may by

order prescribe, but not being a date later than the first day of the insurance year commencing next after the end of the deficiency period, and after the date so prescribed the contributions payable by employed persons and their employers shall be at such reduced rates to be prescribed by regulations made by the Minister with the consent of the Treasury, but not in any case exceeding the rates set out in the First Schedule to this Act, as appear to him from time to time to be necessary for the purpose of providing for the payment of benefit at the rates in force at the date aforesaid, and the contribution to be made out of moneys provided by Parliament shall be at a rate equal to one-fourth of the aggregate amount of the contributions paid in respect of the employed person by himself and his employer, or in the case of an exempt person paid by his employer, and subsections (3) and (7) of section five of the principal Act shall have effect accordingly.

(3) Nothing in this section shall affect the provisions of sections fifteen and sixteen of the principal Act, which provide respectively for securing the solvency of the unemployment fund and for a periodical revision of the rates of contribution.

Meaning of continuous period of unemployment.

5.—(1) Any three days of unemployment, whether consecutive or not, within a period of six consecutive days shall be treated as a continuous period of unemployment, and any two such continuous periods separated by a period of less than three weeks shall be treated as one continuous period of unemployment, and the expression “continuously unemployed” shall be construed accordingly.

(2) The Minister may by regulations provide for the transition from the provisions of the Unemployment Insurance Acts, 1920 to 1922, to the provisions of this section, and prescribe that a period of consecutive days shall for the purposes of this section begin or end on such day as may be prescribed, and that such a period may be inclusive or exclusive of Sundays.

Arrangements with local education authorities for administrative

6.—(1) A local education authority for the purposes of higher education under the Education Act, 1921 (hereinafter referred to as “an education authority”) shall as part of their powers under section one hundred and seven of that Act, have power to undertake, in accordance with a scheme to be approved by the Board

of Education and the Minister jointly, such additional duties, being duties in connection with the administration of benefit claimed by any persons under the age of eighteen years, as are specified in the scheme, and an education authority shall not after the thirty-first day of March, nineteen hundred and twenty-four, exercise their powers under the said section of giving assistance to persons under the age of eighteen with respect to the choice of suitable employment except where such a scheme is in force or otherwise than in accordance with the provisions of the scheme.

tion of  
benefit.  
11 & 12  
Geo. 5. c. 51.

- (2) Where a scheme under this section is in force—
- (a) there shall out of the unemployment fund be repaid to the education authority sums equal to the aggregate amount from time to time paid in benefit by the authority; and
  - (b) there shall from time to time be paid to the education authority in respect of administrative expenses such sums as may be determined in accordance with a scale fixed by the Minister with the consent of the Treasury, and those sums shall be treated as part of the expenses incurred by the Minister in carrying the principal Act into effect:

Provided that for the purposes of this section different scales may be fixed for different classes of education authorities and every such scale shall be fixed after consultation with such associations as may appear to the Minister to represent the interests of local education authorities and shall be such as will, so far as can be estimated, on an average produce sums sufficient to reimburse to the authorities undertaking additional duties under this section the amount by which their administrative expenses are increased by reasonable expenditure upon those duties and to compensate them in respect of interest.

(3) If a scheme under this section provides for the exercise by the council of a non-county borough or urban district of the powers of the education authority under this section, the scheme may also provide for the repayments and payments aforesaid being made direct to that council instead of to the education authority.

Amendment  
of Schedule  
II. (5) of  
principal  
Act.

7. The following shall be substituted for paragraph five of the Second Schedule to the principal Act:—

“5. A period of unemployment shall not be deemed to commence until the date on which the insured contributor makes application for unemployment benefit in the prescribed manner:

Provided that regulations may be made under this Act for allowing some earlier date to be substituted for the date of application in cases in which good cause is shown for delay in making application.”

Provision as  
to insurance  
stamps.

54 & 55 Vict.  
c. 39.

8. The provisions of section thirty-three of the principal Act authorising the Postmaster-General to make regulations for applying, with the necessary adaptations, as respects unemployment insurance stamps, the provisions of certain enactments specified in the said section, shall have effect as though section nine of the Stamp Act, 1891, and any enactments amending that section were included among the enactments so specified.

Recovery of  
sums im-  
properly  
received by  
way of  
benefit.

9.—(1) Where any person is liable to repay to the unemployment fund any sum received by him by way of benefit, that sum may, unless that person shows that the sum was received by him in good faith and without knowledge that he was not entitled thereto, be recovered, without prejudice to any other remedy, by means of deductions from any benefit to which that person thereafter becomes entitled.

(2) If a question arises whether any person is liable under the provisions of this section to have a deduction made from benefit due to him, that question shall be determined in the same manner as a claim for benefit.

Power to  
adapt special  
schemes to  
the pro-  
visions of  
this Act.

10. For the purpose of securing in the case of a special scheme that like rates of benefit shall be payable to the person to whom the scheme applies as are payable under this Act, and that the benefits under the scheme shall otherwise be not less favourable than those provided by the general provisions of the Unemployment Insurance Acts, 1920 to 1922, (but for no other purposes), the Minister may, after consultation with the body charged with the administration of the scheme, notwithstanding anything in section eighteen of the principal Act, by order vary or amend the provisions of the scheme, and any such order

may provide for consequential amendments as to the rates of contributions and otherwise.

11.—(1) Notwithstanding anything in any Act, it shall not be necessary for the Minister at any time before the beginning of the second benefit year to require any association to make for the purposes of proviso (a) to subsection (1) of section seventeen of the principal Act, any greater provision for unemployment benefit than would have been required to be made for those purposes under that Act as originally enacted.

Saving,  
short title,  
and com-  
mencement.

(2) This Act does not apply to Northern Ireland.

(3) The enactments set out in the Second Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

(4) This Act may be cited as the Unemployment Insurance Act, 1923, and shall be construed as one with the Unemployment Insurance Acts, 1920 to 1922, and those Acts and this Act may be cited together as the Unemployment Insurance Acts, 1920 to 1923, and any reference in this Act to the Unemployment Insurance Acts, 1920 to 1922, or to any of those Acts, or to any provision of any of those Acts, shall, unless the context otherwise requires, be construed as a reference to those Acts, that Act, or that provision, as amended by this Act.

(5) This Act shall, except as therein otherwise expressly provided, come into operation on the twelfth day of April, nineteen hundred and twenty-three.

## SCHEDULES.

### FIRST SCHEDULE.

Section 1.

#### MAXIMUM RATES OF CONTRIBUTION.

##### ORDINARY RATES.

From the employed person in each week—

In the case of men - - - - - 6*d.*

„ „ women - - - - - 4*d.*

From the employer for each week—

In the case of employed persons being men - 6*d.*

„ „ „ „ „ women 5*d.*

## RATES IN CASE OF PERSONS UNDER 18.

From the employed person in each week—

In the case of boys - - - - - 3*d.* ." " girls - - - - - 2*d.*

From the employer for each week—

In the case of employed persons being boys - 3*d.*" " " " " girls - 2½*d.*

## Section 11

## SECOND SCHEDULE.

## ENACTMENTS REPEALED.

| Session and Chapter.      | Short Title.                                  | Extent of Repeal.                                                                                                                                                                                                                                                                                                    |
|---------------------------|-----------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 10 & 11<br>Geo. 5. c. 30  | The Unemployment Insurance Act, 1920.         | Paragraph (b) of subsection (2) of section seven.                                                                                                                                                                                                                                                                    |
| 11 Geo. 5.<br>c. 1.       | The Unemployment Insurance Act, 1921.         | Section two so far as unrepealed.                                                                                                                                                                                                                                                                                    |
| 11 & 12<br>Geo. 5. c. 15. | The Unemployment Insurance (No. 2) Act, 1921. | Section two.                                                                                                                                                                                                                                                                                                         |
| 12 & 13<br>Geo. 5. c. 7.  | The Unemployment Insurance Act, 1922.         | Subsection (4) of section one; paragraph (b) of subsection (1) and subsection (5) of section four; in paragraph (a) of subsection (1) of section six the words from "or where the benefit" to "within the fourth special period," and, as from the end of the fourth special period, subsection (2) of that section. |
| 12 & 13<br>Geo. 5. c. 30. | The Unemployment Insurance (No. 2) Act, 1922. | The whole Act.                                                                                                                                                                                                                                                                                                       |